

NDOLA CITY COUNCIL

MINUTES OF THE PROCEEDINGS OF THE ORDINARY MEETING OF THE COUNCIL HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON MONDAY, 31ST MARCH, 2025 AT 15:00 HOURS.

PRESENT

MEMBERS

His Worship the Mayor Jones Kalyati
The Deputy Mayor Councillor Luckson Chisenga
Councillor Febian Mwanza
Councillor Bernard Chama
Councillor Evalisto Banda
Councillor Simon Muleba
Councillor Edgar Misenso
Councillor Ivo Chisanga
Councillor Phoebe Mpondamali
Councillor Bester Chibwe
Councillor Kabwebwe Ntambo
Councillor Rhoda Chinene
Councillor Joseph Chanda
Councillor Brian Nkole
Councillor Kaweme Lombe
Councillor Andronicus Pyoka K Ngulube
Councillor Francis Kazembe
Councillor Katongo Kampamba
Councillor Oscar Sinyinza
Councillor James Banda
Councillor Gift Kunda
Councillor Cindy Kaluba
Councillor Florence Mwambazi
Councillor Akapelwa Simataa
Councillor Fewdays Lumbwe
Councillor Francis Kabwe

PRESENT BY INVITATION

Bishop Nelly Chikwanda
Alderman Geoffrey Mukamba

WARD

Ndola
Mapalo
Skyways
Kamba
Chifubu
Fibobe
Chichele
Kanini
Kansenshi
Pamodzi
Twapia
Yengwe
Nkwazi
Daghammaskjoeld
Munkulungwe
Masala
Mukuba
Itawa
Lubuto
Kafubu
Kantolomba
Mushili
Kaloko
Kaniki
Kanyanje
Kawama

Mayor's Chaplain
Alderman

ABSENT WITH APOLOGY

Councillor Mathews Musonda
Councillor Mathias Mweemba
Councillor Sandra Mwananyanda
Councillor Emmanuel Mulenga

Twashuka
Kabushi
Kavu
Lupili

IN ATTENDANCE

Mr. George Mulenga
Ms. Chembe Chishimba
Mr. Philip S. Kalima
Mr. James Tembo
Mr. Dackson Zulu
Ms. Doroth M. Kababa
Mr. Richard Mwiinga
Mr. Hubert Mwanza
Mr. Elias Mwalaba
Mr. Shem Samalela
Mr. Shimunza Milupi
Mr. Blessings Chansa
Ms. Chilufya Chileshe
Ms. Catherine B. Chella
Mr. Ian Chibale
Mr. Venter Siamwanda
Ms. Rebecca Mushota
Mr. Cosmas Chizu
Mr. Pasquill S. Kalaluka
Mr. Simon Shanyinde
Mr. Kondwani Masebo
Ms. Zeniah Chitema
Ms. Nosiku Chileshe
Mr. Moses K. Chansa
Ms. Angela Bwalya
Mr. Ignituous Chandawe
Mr. Kunda Musamba Lewis
Mr. Kalaba Zulu
Ms. Martha Tembo
Ms. Deborah Chirwa
Ms. Mwelwa Musenga
Ms. Majory Chishimba
Mr. Emmanuel Makulika

DESIGNATION

Town Clerk
Director of Human Resource and Administration
District Agricultural Coordinator
Director of Finance
District Fisheries and Livestock Coordinator
Director of City Planning
Director of Legal Services
Director of Public Health
Director of Engineering Services
Assistant Director of Finance
Assistant Director of City Planning
Assistant Director of City Planning
Assistant Director of Housing and Social Services
Assistant Director of Housing and Social Services
Assistant Director of Valuation
Head Procurement and Supply Unit
Public Relations Manager
Chief Internal Auditor
Director Planning
Information Technology Manager
Chief Committee Clerk
Senior Agricultural Officer
Sports Development Officer
Assistant Community Development Officer
Assistant Social Welfare Officer
Senior Valuation Officer
Environmental Planner
Legal Officer
Town Planner
Senior Committee Clerk
Committee Clerk
Committee Clerk
Assistant Committee Clerk

Ms. Ruth Mukangwa
Ms. Nanzila Nachilyango

Assistant Committee Clerk
Assistant Committee Clerk

NATIONAL ANTHEM AND PRAYER

Prior to the commencement of the meeting, the National Anthem was sung and thereafter a prayer was conducted by Bishop Nelly Chikwanda.

NOTICE OF MEETING

The notice of meeting was read by the Town Clerk, Mr. George Mulenga.

DECLARATION OF INTEREST

- i. Councillor James Banda declared interest on minute number *LSA/206/03/2025* and did not participate in the deliberations.
- ii. Councillor Francis Kazembe declared interest on minute number *LSA/206/03/2025* and did not participate in the deliberations.
- iii. Mr. Ian Chibale, the Assistant Director of Valuation and Property Taxation declared interest on minute number *LSA/203/03/2025* and did not participate in the deliberations.

OC/248/03/2025 MAYOR'S COMMUNICATIONS

The Mayor's Communications made to the Council were as indicated here below:

MAYOR'S COMMUNICATIONS

S/NO	DATE	NAME/ORGANISATION	PURPOSE OF ENGAGEMENT
1	07/01/2025	Ndola High Court	Attended the ceremonial opening of the criminal sessions at the High Court
2	01/01/2025	Department of Forestry, Copperbelt Province	Represented by the Deputy Mayor, Cllr. Luckson Chisenga at the launch of the tree planting season at the Akapelwa Farm in Kaniki
3	15/01/2025	Ndola City Council, Department of Housing and Social Welfare Social Welfare	Chaired a meeting of traders in the Council Chamber
4	23/01/2025	Ndola City Council, Department of Social Welfare	Officiated at the Councillors orientation on the Community Welfare Assistance Committees
5	23/01/2025	3 Infantry Brigade Commander Brigadier General Kelvin Chiyangi	Courtesy Call on the Mayor
6	24/01/2025	Ndola City Council	Attended Handover of CDF funded projects at Katondo Primary School in Bwana Mkubwa Constituency
7	02/02/2025	Media	Press briefing on Council matters
8	07/02/2025	Choppies	Officiated grand opening of Choppies store at Rekays Mall

9	13/02/2025	Zambia Development Support Foundation	Visit to Officiate at Public Library in Mapalo
10	18/02/2025	Ndola City Council	Officiated at the orientation of the Constituency Development Fund Committees.
11	22/02/2025	Rotary Club International	Rotary International Governor, Tom Kamwendo courtesy call on the Mayor
12	04/03/2025	Pamodzi and Chifubu Secondary Schools	Mayor's inspection of sanitation standards.
13	06/03/2025	The Chepeshi family	Represented by Yengwe Ward Councillor Rhoda Chinene at the burial service of the senior citizen who was former Yengwe Ward Councillor Peter Chepeshi
14	08/03/2025	District Administration	Participated in the commemoration of Women's Day.
15	10/03/2025	Ndola City Council	Participated in the handover of Chifubu Subordinate Court annex to Judiciary graced by Chief Justice His Lordship Dr. Mumba Malila
16	12/03/2025	District Administration	Participated in the commemoration of Youth Day held at the Civic Centre.
17	17/03/2025	Ndola City Council	Represented by Lubuto Ward Councillor Oscar Sinyinza at the handover of ablution blocks at Kawayawaya Bust Stop and Toka Market funded by the Constituency Development Fund
18	25/03/25	Ndola City Council	Flagged-off intensified road signage installation exercise at Ndola Teaching Hospital.
19	26/03/2025	Kenyan High Commissioner	Kenya High Commissioner to Zambia, Her Excellency Lillian Tomitom paid a courtesy call on His Worship the Mayor in the Mayor's Parlour

OC/249/03/2025 CONFIRMATION OF THE MINUTES OF THE PROCEEDINGS OF THE ORDINARY MEETING OF THE COUNCIL HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON MONDAY, 30TH DECEMBER, 2024 AT 14:48 HOURS.

On a motion moved by Councillor Rhoda Chinene and duly seconded by Councillor Simon Muleba, it was:

RESOLVED: that

The minutes of the proceedings of the Ordinary meeting of the Council held in the Council Chamber, Civic Centre, Independence way on Monday, 30th December, 2024 at 14:48 hours (*Minutes No. OC/235/12/2024 – OC/247/12/2024*) be **Confirmed** and signed as a true record of the proceedings of the Council.

CONSIDERATION OF THE COMMITTEE'S MINUTES

OC/250/03/2025 ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE COMMUNITY DEVELOPMENT AND SOCIAL SERVICES COMMITTEE HELD IN THE COUCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON WEDNESDAY, 5TH FEBRUARY, 2025 AT 14:48 HOURS

Councillor Oscar Sinyinza raised the motion to have the minutes of the proceedings of the meeting of the Community Development and Social Services Committee held in the Council Chamber, Civic Centre, Independence way on Wednesday, 5th February, 2025 to be received by the Council and duly seconded by Councillor Brian Nkole, after reading through the minutes of the Committee, a motion to adopt the minutes was moved by Councillor Oscar Sinyinza and duly seconded by Councillor Kaweme Lombe, it was:

RESOLVED: that

The minutes of the proceedings of the meeting of the Community Development and Social Services Committee held in the Council Chamber, Civic Centre, Independence way on Wednesday, 5th February, 2025 (*Minutes No. CD/196/02/2025 – CD/212/02/2025*) be received and ***adopted*** as part of the proceedings of the Council.

OC/251/03/2025 ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE ENGINEERING, INFRASTRUCTURE DEVELOPMENT AND EMERGENCY SERVICES COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON THURSDAY, 13TH FEBRUARY, 2025 AT 15:00 HOURS

Councillor Francis Kabwe moved a motion to have the minutes of the proceedings of the meeting of the Engineering Infrastructure Development and Emergency Services Committee held in the Council Chamber, Civic Centre, Independence Way on Thursday, 13th February, 2025 at 15:00 hours to be received by the Council and was duly seconded by Councillor Ivo Chisanga, after reading through the minutes, a motion to adopt the minutes was moved by Councillor Francis Kabwe and seconded by Councillor Kabwebwe Ntambo and it was;

RESOLVED: that

The minutes of the proceedings of the meeting of the Engineering, Infrastructure Development and Emergency Services Committee held in the Council Chamber, Civic Centre, Independence Way on Thursday, 13th February, 2025 at 15:00 hours (*Minutes No. EID/131/02/25 - EID/141/02/25*) be received and ***adopted*** as part of the proceedings of the Council subject to the following: -

On the first page the year on the heading “**2024**” to read “**2025**”

OC/252/03/2025

ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE PUBLIC HEALTH SERVICES COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON THURSDAY, 20TH FEBRUARY, 2025 AT 14:50 HOURS.

The motion to receive the minutes of the proceedings of the meeting of the Public Health Services Committee held in the Council Chamber, Civic Centre, Independence way on Thursday, 20th February, 2025 at 14:50 hours by the Council was moved by Councillor Bester Chibwe and was duly seconded by Councillor James Banda, after reading through the minutes of the Committee, a motion to adopt the minutes was moved by Councillor Bester Chibwe and duly seconded by Councillor Bernard Chama, it was:

RESOLVED: that

The minutes of the proceedings of the meeting of the Public Health Services Committee held in the Council Chamber, Civic Centre, Independence way on Thursday, 20th February, 2025 at 14:50 hours (*Minutes No. PHS/214/02/25 – PHS/244/02/25*) be received and ***adopted*** as part of the proceedings of the Council.

OC/253/03/2025

ADOPTION OF THE MINUTES OF PROCEEDINGS OF THE MEETING OF THE LEGAL SERVICES AND ADMINISTRATION COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON THURSDAY, 27TH MARCH, 2025 AT 14:36 HOURS

Councillor Simon Muleba moved a motion to have the minutes of the proceedings of the meeting of the Legal Services and Administration Committee held in the Council Chamber, Civic Centre, Independence Way on Thursday, 27th March, 2025 at 14:36 hours to be received by the Council and was duly seconded by Councillor Brian Nkole, after reading through

the minutes, a motion to adopt the minutes was moved by Councillor Simon Muleba and duly seconded by Councillor Gift Kunda and it was:

RESOLVED: that

The minutes of the meeting of the Legal Services and Administration Committee held in the Council Chamber, Civic Centre, Independence Way on Thursday 27th March, 2025 (*Minutes No. LSA/198/03/2025 – LSA/212/03/2025*) be received and ***adopted*** as part of the proceedings of the Council.

OC/254/03/2025

ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE AUDIT COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON WEDNESDAY 26TH MARCH, 2025 AT 14:56 HOURS

The motion to receive the minutes of the proceedings of the meeting of the Audit Committee held in the Council Chamber, Civic Centre, Independence Way on Wednesday 26th March, 2025 at 14:56 hours by the Council was moved by Councillor Phoebe Mpondamali and duly seconded by Councillor Ivo Chisanga, after reading through the minutes of the meeting, a motion to adopt the minutes was moved by Councillor Phoebe Mpondamali and seconded by Councillor Simon Muleba where, it was:

RESOLVED: that

The minutes of the proceedings of the meeting of Audit Committee held in the Committee Room, Civic Centre, Independence Way on Wednesday, 26th March, 2025 (*Minutes No. AUD/81/03/2025 - AUD/89/03/2025*) be received and ***adopted*** as part of the proceedings of the Council subject to the following; -

Under minute number ***AUD/88/03/2025*** the resolution “*On a proposal by Councillor Akapelwa Simataa and duly seconded by Councillor Gift Kunda*” should be deleted and read “*Members unanimously resolved that*”

On the last page the name “Councillor Andronicus P. Ngulube” be removed and the sentence to read “*There being no other business to transact, the meeting ended at 17:11 after a prayer*”.

OC/255/03/2025

ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE AGRICULTURE, FISHERIES AND LIVESTOCK SERVICES COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON TUESDAY, 4TH FEBRUARY, 2025 AT 14:56 HOURS

Councillor Cindy Kaluba moved a motion to have the minutes of the proceedings of the meeting of the Agriculture, Fisheries and Livestock Services Committee held in the Council Chamber, Civic Centre, Independence Way on Tuesday, 4th February, 2025 at 14:56 hours to be received by the Council and was duly seconded by Councillor Gift Kunda, after reading through the minutes, a motion to adopt the minutes was moved by Councillor Cindy Kaluba and seconded by Councillor Mathews Musonda, it was;

RESOLVED: that

The minutes of the meeting of the Agriculture, Fisheries and Livestock Services Committee held in the Council Chamber, Civic Centre, Independence Way on Tuesday, 4th February, 2025 at 14:56 hours (*Minutes No. AFLS/27/02/2025– AFLS/35/02/2025*) be received and adopted as part of the proceedings of the Council.

OC/256/03/2025

ADOPTION OF THE MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE FINANCE, VALUATION AND COMMERCIAL UNDERTAKINGS COMMITTEE HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON FRIDAY, 28TH MARCH, 2025 AT 10:30 HOURS

Councillor Rhoda Chinene moved a motion to have the minutes of the proceedings of the meeting of the Finance, Valuation and Commercial Undertakings Committee held in the Council Chamber, Civic Centre, Independence Way on Friday, 28th March, 2025 at 10:30 hours to be received by the Council and was duly seconded by Councillor Bester Chibwe, after reading through the minutes, a motion to adopt the minutes was moved by Councillor Rhoda Chinene and seconded by Councillor Oscar Sinyinza, it was;

RESOLVED: that

The minutes of the meeting of the Finance, Valuation and Commercial Undertakings Committee held in the Council Chamber, Civic Centre, Independence Way on 28th March, 2024 at 10:30 hours (*Minutes No.*

FVCU/162/03/2025– FVCU/172/03/2025) be received and adopted as part of the proceedings of the Council subject to the following;

On page 4 of the Appendix indicating **“Financial Statements for year ended 31st December 2024” serial number 11** the gender for female on “Councillor “Kaweme Lombe” be removed and replaced by “male”

On page 4 of the Appendix indicating **“Financial Statements for year ended 31st December 2024” serial number 29** the name “Councillor Phiri Kennedy” be deleted.

REPORT OF THE TOWN CLERK

OC/257/03/2025 REQUEST TO MAKE CORRECTIONS REGARDING MEMORANDUM OF UNDERSTANDING (MOU) TO BE SIGNED BETWEEN AVIC INTERNATIONAL ZAMBIA AND NDOLA CITY COUNCIL- PIECE OF LAND BORDERING MASAITI DISTRICT

It was reported by the Town Clerk to the Council that on 2nd December, 2024, a Special Meeting of the Council was held and under minute number ***SPC/240/2024***, the Council resolved to sign a Memorandum of Understanding with AVIC International Zambia as indicated below:

- (a) to permit the company establish regional offices in Ndola on an identified 32 hectares of wet land bordering Masaiti District.
- (b) the Council approved Avic International Zambia to undertake proposed civil works of rehabilitating the Civic Centre drive way, Revenue Hall Car Park, Clients’ Car Park, creating staff car park and rehabilitation of 15 kilometers of selected gravel roads.

It was further reported that before the parties could sign the Memorandum of Understanding AVIC International Zambia had written to the Council indicating that there was need to make corrections on records of the Council as indicated below;

- i. that the identified wet land boardering Masaiti District was 57 hectares in extent as per the initial letter written to the Council by Avic as attached and therefore, the 32 hectares reported by the Town Clerk on 2nd December 2024 was an error.
- ii. that Avic International Zambia had four 4 independent departments that executed works under the holding company therefore the Memorandum

of Understanding was to be signed with the department called Unipeak Construction Company LTD (AVIC).

- iii. that the rehabilitation of the 15 km gravel roads be restricted to two (2) stretches of 7.5 km each capturing key interlink roads among the four
- iv. constituencies of Ndola so that the company was not made to mobilize and demobilize 30 times as suggested by the Council in each ward because such an approach would be very expensive on the part of the company

The relevant correspondences for the perusal of members in order to make an informed decision were attached. Members deliberated on the matter.

On a proposal by Councillor Katongo Kampamba and duly seconded by Councillor James Banda, it was;

RESOLVED: that

The matter be deferred to the Special meeting of the Council to enable members of the Council have further consultations on the matter and that Unipeak Construction Company LTD be summoned to appear before the Council.

OC/258/03/2025

COMPLAINT BY THE AUDITOR GENERAL AND DEMAND FOR COUNCIL TO GIVE EXPLANATION WITHIN 14 DAYS REGARDING ALIENATION OF LAND NEAR FIRE BRIGADE

The Town Clerk reported that the Council had received a letter dated 13th March, 2025 in which the Auditor General sought the Council's explanation within 14 days regarding the allegedly subdividing and alienation of land at the Fire Brigade, which happened in period 2020 to 2021. Below was the brief account: -

- (i) In 2020 the Auditor General approached Ndola City Council to consider allocation of approximately 40m by 50m land for an office block.
- (ii) On assignment by the Town Clerk then, it was revealed that officers from both institutions visited 04 sites and settled for land at the Fire brigade which culminated in to producing survey diagram No. SD 26293/2021.
- (iii) It was revealed that the Auditor General subsequently was facilitated to obtain title No. 119412 in 2021 but to their dismay, it was discovered that the plot size had been reduced from about 6,225 square metres to 3,657 square metres.

- (iv) It was revealed that the reduction was caused by the Council processing title deed for a politically exposed person who was serving as a Minister at the time without disclosure to the Auditor General who had interest in the whole land for national interest.

With the foregoing account and taking in to consideration that the Councillors may not be preview to what exactly transpired or to any documents, authority was being sought to engage the former staff of Ndola City Council to meet the current management to help in writing an account of what transpired. These were former Town Clerk who was currently awaiting deployment but still on Ndola City Council payroll, former Director of City Planning currently with Chililabombwe and a former Town Planner currently with Kitwe City Council.

The expense would relate to fuel and Daily Subsistence Allowance (DSA). Writing via emails and letters would not solve the problem as it was suggested that the Director Copperbelt region in office of Auditor General and his staff whom they dealt with be met in a meeting physically to obtain the versions on what transpired.

On a proposal by Councillor Evalisto Banda and duly seconded by Councillor Andronicus P.K Ngulube, it was;

RESOLVED: that

The expenses to meet fuel and Daily Subsistence Allowances for the former officers to hold a meeting with officers at the office of Auditor General, Director Copperbelt region and current management team be *approved* so that response could be given to the Auditor General as directed.

OC/259/03/2025

APPEAL FROM SOME CHIFUBU RESIDENTS FOR THE COUNCIL TO ENFORCE TERMS AND CONDITIONS OF CONTRACT OF SALE OF STAND NO. S/CHIFU/10283119 – MPEZENI PARK

It was reported by the Town Clerk for the decision of the Council that some residents of Chifubu had made an appeal to the Council to consider enforcing the terms and conditions of sale of the stand stated above which they alleged had not been fulfilled by the parties namely Ndola City Council to Convex Equity Limited and RMB Westport Zambia. The brief account was stated below: -

- (i) On 9th September, 2018 the 3 parties Ndola City Council, Convex Equity Limited and RMB Westport Zambia signed contract of sale of stand at sum of US \$290,000.00 (Transferring from NCC, CEL to RMB)
- (ii) The key terms and conditions included: -
 - a. Development of a retail shopping centre and or mall.
 - b. The purchaser providing and using its US\$180,000 to provide community development to NCC to develop and construct 3 wards at Chipokota Mayamba Clinic and a library in Chifubu.

With the foregoing account, Management recommended that authority be granted to convene meeting of the parties so that each party's obligations were reviewed and discussed in order to give the residents an informed response.

On a proposal by Councillor Febian Mwanza and duly seconded by Councillor James Banda, it was;

RESOLVED: that

Management be granted authority to convene meeting of the parties so that each party's obligations were reviewed and discussed and feedback be given to the Council.

There being no other business to transact, the meeting ended at 19:20 hours and thereafter the National Anthem was sung followed by a closing prayer from Bishop Nelly Chikwanda

Signed in accordance with the Resolutions passed by the Meeting of the Ordinary Council
held on Monday, 31st March, 2025

31/03/2025
DATE

MAYOR

